

STATE OF NEW YORK

4590--A

2025-2026 Regular Sessions

IN SENATE

February 10, 2025

Introduced by Sen. PARKER -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to establishing the New York state grid modernization commission

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. New York state grid modernization commission. (a) Within
2 one hundred eighty days of the effective date of this act, the New York
3 state grid modernization commission shall be established.
4 (b) The New York state grid modernization commission shall consist of:
5 (i) the chief executive officer of the department of public service or
6 their chosen designee, (ii) the commissioner of environmental conserva-
7 tion or their chosen designee, (iii) the commissioner of economic devel-
8 opment or their chosen designee, (iv) the commissioner of transportation
9 or their chosen designee, (v) the commissioner of labor or their chosen
10 designee, (vi) the commissioner of the division of homeland security and
11 emergency services or their chosen designee, (vii) the commissioner of
12 agriculture and markets or their chosen designee, (viii) the commission-
13 er of health or their chosen designee, (ix) the secretary of state or
14 their chosen designee, (x) the president of the power of authority or
15 their chosen designee, (xi) the president of the New York state energy
16 research and development authority or their chosen designee and (xii)
17 two representatives appointed by the governor, two representatives
18 appointed by the temporary president of the senate and two represen-
19 tatives appointed by the speaker of the assembly as well as one repre-
20 sentative appointed by the minority leader of the senate and one repre-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 tentative appointed by the minority leader of the assembly. Such
2 members shall be appointed in accordance with the provisions of subdivi-
3 sion (c) of this section.

4 (c) The grid modernization commission shall include members from
5 communities of color, low-income communities, and communities bearing
6 disproportionate pollution and climate change burdens, or shall be
7 representatives of community-based organizations with experience and a
8 history of advocacy on environmental justice issues, and shall include
9 at least two representatives from New York city communities, two repre-
10 sentatives from rural communities, and two representatives from upstate
11 New York urban communities. Such representatives shall have experience
12 in one or more of the following fields: economics, engineering, law,
13 utility regulation, consumer advocacy, or environmental management. The
14 grid modernization commission shall also include at least one local
15 official from a city, town, or village that owns or operates a municipal
16 electric utility.

17 (d) Members of the grid modernization commission shall serve without
18 compensation, but shall be reimbursed for the necessary and actual
19 expenses incurred in the performance of duties as members of the commis-
20 sion.

21 (e) The grid modernization commission shall meet biannually.

22 § 2. (a) The grid modernization commission shall, in consultation with
23 the department of public service, conduct a study of research, develop-
24 ment, and demonstrations of electric grid modernization that address the
25 principal challenges identified in the New York Independent System Oper-
26 ator's 2021-2040 System & Resource Outlook and any subsequent twenty-
27 year comprehensive reliability plans. The study shall identify tools,
28 resources, and deployment models that may enable improved performance
29 through the adoption of emerging, commercially available or advanced
30 grid technologies or solutions, including but not limited to:

- 31 (i) micro-grids;
- 32 (ii) distributed energy resources;
- 33 (iii) energy storage;
- 34 (iv) electric vehicles;
- 35 (v) electric vehicle charging infrastructure;
- 36 (vi) integrated information and communications systems;
- 37 (vii) transactive energy systems;
- 38 (viii) advanced demand management systems;
- 39 (ix) the role of the speed of interconnection to the distribution or
40 bulk system in enabling a robust future electric grid;
- 41 (x) the role of state and local regulatory authorities in enabling a
42 robust future electric grid to ensure that:
 - 43 (A) electric utilities remain financially viable;
 - 44 (B) electric utilities make the needed investments that ensure a reli-
45 able, secure, and resilient grid; and
 - 46 (C) costs incurred to transform to an integrated grid are allocated
47 and recovered responsibly, efficiently, and equitably; and
- 48 (xi) any other technologies, solutions, or strategies that the commis-
49 sion deems important to modernizing the grid.

50 (b) The grid modernization commission shall solicit input from stake-
51 holders, including but not limited to:

- 52 (i) local governments;
- 53 (ii) municipal utilities;
- 54 (iii) utility companies;
- 55 (iv) rural electric cooperatives;
- 56 (v) labor unions;

- (vi) ratepayers;
- (vii) trade associations;
- (viii) generators;
- (ix) community organizations; and
- (x) transmission owners.

(c) The grid modernization commission shall hold at least one public hearing in the preparation of the study and may base study findings on existing literature.

(d) Any expenses associated with the reimbursement of the grid modernization commission members shall be borne by the New York state energy research and development authority.

(e) No later than eighteen months after the effective date of this act, the grid modernization commission shall issue a report on the findings of its study to the state energy planning board containing any recommendations appropriate for consideration in the development of the state energy plan. The grid modernization commission shall issue an annual report following the submission of its initial report to the state energy planning board with any necessary updates. Such reports shall be posted on the authority's website and be issued to the temporary president of the senate and the speaker of the assembly.

§ 3. The grid modernization commission shall make recommendations to the New York state energy research and development authority of grants that the authority may make to carry out eligible projects related to the modernization of the electric grid, including but not limited to the application of technologies to improve observability, advanced controls, and prediction of system performance on the distribution system.

§ 4. In the development of the state energy plan, the state energy planning board shall consult with the grid modernization commission and consider the reasonableness, efficacy and expense of including in the state energy plan the recommendations contained in the grid modernization commission's report issued pursuant to this act.

§ 5. This act shall take effect immediately.